

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 18
JUDICIAL OFFICER: DANIELLE K DOUGLAS
HEARING DATE: 12/26/2025

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties call the department rendering the decision to request argument and to specify the issues to be argued.

Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).) CourtCall will **NOT** be used by D18. Zoom is approved for all hearings except Issue Conferences and Trials. **Dept. 18's telephone number is: (925) 608-1118.**

NOTE: In order to minimize the risk of miscommunication, Dept. 18 prefers and encourages email notification to the department of the request to argue and specification of issues to be argued.

Dept. 18's email address is: dept18@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 18 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Law & Motion

1. 9:00 AM CASE NUMBER: C23-01752
CASE NAME: MARY WALDEN VS. GREGG DRILLING & TESTING, INC.
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: GREGG DRILLING, LLC
TENTATIVE RULING:

Continued by stipulation of the parties to February 13, 2026, at 9am.

2. 9:00 AM CASE NUMBER: C24-01666
CASE NAME: NIRAJ GANDHI VS. SAN RAMON REGIONAL MEDICAL CENTER
*HEARING ON MOTION IN RE: RECONSIDER ORDER GRANTING MOTION TO QUASH DEPOSITION
SUBPOENA DIRECTED TO MCAFEE CORPORATION
FILED BY: SAN RAMON REGIONAL MEDICAL CENTER
TENTATIVE RULING:

The court clarifies its May 13, 2025 order. Defendant may serve a more narrowly tailored subpoena relating to Plaintiff's prior employment without obtaining leave of the court. However, if Plaintiff seeks to serve the same subpoena Plaintiff must seek leave of the court explaining the good cause that exists to serve the same subpoena the court previously found to be overbroad.

3. 9:00 AM CASE NUMBER: C24-02137
CASE NAME: PETITION OF: DEREK WAGLEY
*HEARING ON MOTION IN RE: AND MPA FOR ASSIGNMENT OF RIGHTS UNDER CCP 708.510; DEC
OF JUDGMENT CREDITOR
FILED BY:
TENTATIVE RULING:

Granted.

4. 9:00 AM CASE NUMBER: C25-00901
CASE NAME: MOUNICA AITHA VS. VINOD PASPUNOORI
*HEARING ON MOTION IN RE: QUASH SERVICE OF SUMMONS
FILED BY: PASPUNOORI, VINOD
TENTATIVE RULING:

Continued by the Court to January 30, 2026.

5. 9:00 AM CASE NUMBER: C25-01064
CASE NAME: WILTON SHORT VS. FRANKLIN CREDIT MANAGEMENT CORP.
HEARING IN RE: MOTION FOR RECONSIDERATION & TO VACATE TRO ORDER
FILED BY:
TENTATIVE RULING:

Introduction

Before the Court is Plaintiff Wilton Short's Motion for Reconsideration ("Motion").

Plaintiff's Motion is **denied** for the reasons set forth below.

Procedural Timeline

Before filing his Complaint in this Court, Plaintiff filed Complaint with the substantially the same facts and the exact same parties in the Federal Northern District Court of California. Plaintiff alleged nine causes of action for (1) The Federal Fair Debt Collection Practices Act; (2) Regulation X (Real Estate Settlement Procedures Act) and Regulation Z (Truth in Lending Act); (3) Gramm-Leach-Bliley Act; (4) Real Estate Settlement Procedures Act, and California Civil Code Sections 2924 and 2924b; (5)

Regulation X (12 CFR 1024.41) and California Homeowner Bill of Rights (HBOR), California Civil Code § 2923.7; (6) 12 CFR § 1026.41 of Regulation Z (Truth in Lending Act); (7) Regulation X (12 CFR 1024.41) and California Civil Code § 2923.6; (8) Dodd-Frank Wall Street Reform and Consumer Protection Act; and (9) Real Estate Settlement Procedures Act (RESPA). On November 12, 2024, Plaintiff filed his initial Complaint in Federal Court. Plaintiff already tried to obtain a TRO/Injunction in the Federal Action, which was denied on April 8, 2025, based on different causes of action than what Plaintiff is moving on for this instant motion for Preliminary Injunction.

On May 15, 2025, Plaintiff filed a First Amended Complaint. Plaintiff has not only added more cause of action to the FAC but Plaintiff has also made the FAC verified. The FAC alleges eleven causes of action for (1) Wrongful Foreclosure; (2) Quiet Title; (3) Cancellation of Instruments; (4) Fraudulent Substitution of Trustee; (5) Violations Of Civil Code § 2924 Et Seq; (6) Invasion of Privacy; (7) Fraud and Misrepresentation; (8) Unfair Business Practices; (9) Conspiracy to Commit Fraud/Wrongful Foreclosure; (10) Civil Theft (Receiving Stolen Property); and (11) Declaratory and Injunctive Relief.

On May 30, 2025, Plaintiff filed an Ex Parte Application for Temporary Restraining Order. The Court did not rule on the Ex Parte relief but did set an Order to Show Cause to show why a Preliminary Injunction should not be granted for July 18, 2025.

On July 18, 2025, at the first Order to Show Cause to show why a Preliminary Injunction should not be granted, this Court granted Plaintiff a TRO because the Court was uncomfortable granting a Preliminary Injunction without the issues being fully briefed on the merits. The Court granted the TRO based off Plaintiff meeting his initial burden and Defendants' in effect non-opposition because Defendants argued that this Court should deny Plaintiff request based on the Federal Court's denial of a Preliminary Injunction on substantially different grounds.

On October 3, 2025, at the second Order to Show Cause to show why a Preliminary Injunction should not be granted, this Court denied Plaintiff a PI and dissolved the TRO to stop the sale of Plaintiff's property. The Court granted the TRO based off Plaintiff having frequent contact with Defendant Franklin showing Plaintiff knew or should have known that Defendant Franklin was the successor in interest to Cal State 9 for the subject loan and that the subject loan was not closed out or refinanced because Plaintiff took out withdrawals on the loan. The Court filed and mailed notice of the order after hearing on October 9, 2025.

Factual History

On December 12, 2008, an Abstract of Judgment was recorded by Judgment Creditor with the Contra Costa County Recorder's Office. (SRC MPA APPLICATION FOR ORDER FOR SALE OF DWELLING at p. 2: 3-4.)

On April 3, 2018, Application and Notice of Renewal of Judgment was recorded with the Contra Costa County Recorder's Office. (SRC MPA APPLICATION FOR ORDER FOR SALE OF DWELLING at p. 2: 5-6.)

The alleged Transmutation Agreement was executed on May 1, 2006, notarized on May 20, 2024, and recorded with the Contra Costa Recorder's Office on May 21, 2024. (SUPP OBJ BRIEF AND OPPO TO LEVY at Exh. B.)

Standard of Review

Code of Civil Procedure section 1008(a) provides that a party affected by a prior court order may,

“based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Cal. Code Civ. Proc. § 1008(a).) Such an application must be accompanied by an affidavit that states “what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*)

However, a trial court has inherent power to reconsider its own interim rulings even in the absence of a change in law or new or different facts or circumstances. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237; *Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 (“*Brown*”).) “This authority derives from the judiciary’s fundamental, constitutionally mandated function to resolve specific controversies between the parties.” (*Brown*, 47 Cal.4th at 1248.)

Analysis

Timeliness

Plaintiff’s Motion is timely. The Order denying Plaintiff’s Motion for a Preliminary Injunction was served by this Court by mail on October 9, 2025. If notice is made by mail within California, the notice period shall be increased by five calendar days. (CCP § 1005(b).) Thus, the ten days to file a reconsideration motion did not start counting until October 15, making Plaintiff’s deadline to file his motion for reconsideration October 25, 2025. Plaintiff filed his Motion for Reconsideration of this on October 22, 2025, rendering it timely.

New Evidence Does Not Change the Court’s Decision

First, Plaintiff’s DFPI argument is unavailing. The California Debt Collection Licensing Act contains several exclusions from both its licensing obligation and the Act’s substantive provisions. Notably, the Act excludes from its scope, depository institutions, which is defined to include FDIC-insured out-of-state state-chartered banks, licensees under the California Financing Law, licensees under the California Residential Mortgage Lending Act, licensees under the California Real Estate Law, and a trustee performing acts in connection with a nonjudicial foreclosure, among others. (Fin. Code §§ 28000 *et seq.*) Here, Defendants would meet the exclusions for licensees under the California Financing Law, licensees under the California Residential Mortgage Lending Act, licensees under the California Real Estate Law, and a trustee performing acts in connection with a nonjudicial foreclosure.

Second, the paperwork suggesting that a refinance took place does not sway the Court. Even if is taken as true that the refinance took place, Defendant’s Research Administrator Eric Steege responded to Plaintiff’s request for validation of debt with a letter dated November 5, 2024, which provided the operative loan documents as well as a loan history showing that the loan has never been paid off, and that 25 draws were taken on the after the time that the loan was purportedly paid in full between May 23, 2007, and February 11, 2008. (Steege Decl. ¶15, Ex G.) Even if a refinance did take place, Plaintiff would still owe Defendant the money that he withdrew 25 times from May 23, 2007, to February 11, 2008.

Third, the fact Defendant Bosco Credit LLC defaulted in a seemingly related federal action does not have any preclusive effect on this litigation since nothing was decided on the merits.

Conclusion

Plaintiff's Motion for Reconsideration is **denied**.

6. 9:00 AM CASE NUMBER: C25-01427
CASE NAME: AUGUST BLASS VS. CAL PRIVATE BANK,
*HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JASON W. ESTAVILLO
FILED BY: BLASS, AUGUST
TENTATIVE RULING:

The motion to be relieved as counsel is granted and shall be effective upon the filing of the proof of service of the signed order upon the client.

7. 9:00 AM CASE NUMBER: C25-01488
CASE NAME: JACQUELINE NAMPEERA VS. CMG MORTGAGE, INC.
*MOTION/PETITION TO COMPEL ARBITRATION
FILED BY: CMG MORTGAGE, INC.
TENTATIVE RULING:

Introduction

Before the Court is Defendant CMG Mortgage, Inc.'s (CMG or Defendant) Motion To Compel Plaintiff Jacqueline Nampeera's individual claims to binding arbitration and stay this civil action until arbitration is complete. The Motion relates to Plaintiff's Complaint for (1) Private Attorneys General Act (Lab. Code § 2698, et seq.).

Supplemental Briefing

This motion was first heard on December 5, 2025, in Department 18 of the Contra Costa Superior Court, the Honorable Danielle Douglas, presiding. Karen Gold appeared for Plaintiff while Sarju A. Naran appeared for Defendant.

Plaintiff argued at the hearing that Defendant brought new evidence in its Reply papers and declarations and stated it would be unfair for Plaintiff not to have the opportunity to brief the new evidence. The Court agreed and granted the Parties the opportunity for supplemental briefing Defendant's new evidence brought up its reply papers.

EFAA Does Not Apply Despite the Ruling in Plaintiff's RJN Ex. 1

Plaintiff posits that the ruling made in Department 16 in Contra Costa County Case No. C25-01575 forwards the proposition that Plaintiff's allegations have alleged a combination of gender and racial harassment as defined by the EFAA. Taking a closer look at the order, it is not the case.

In the Prevost v CMG Mortgage, Inc (Plaintiff's RJN Ex. 1) case, the argument forwarded by Defendant was that the EFAA did not apply because Plaintiff failed to allege severe and pervasive harassment that was not sexual in nature. Here, the argument asserted by Defendant is that Plaintiff failed to adequately allege a gender discrimination or harassment cause of action. (Reply at p.5: 18-28.)

In any event, non-binding Superior Court orders and transcripts for a similar type of case with different facts is not relevant here. "Trial court decisions are not precedents binding on other courts under the principle of stare decisis." (*Harrott v. County of Kings* (2001) 25 Cal.4th 1138, 1148.)

Defendant Met its Burden by Preponderance of the Evidence that Plaintiff Signed Both Arbitration Agreements

First, the Court does not agree that the envelope ID makes all DocuSign documents unreliable, the Court believes that Defendant CMG satisfactorily explained how the envelope ID was accidentally altered in its Reply declarations. The Court declines to rule on Plaintiff's objections as they are not in proper form. (See Cal. Rules of Court, rule 3.1354).

Second, the Court is not convinced of Plaintiff's position that there is uncontroverted testimony that others could access Plaintiff's work email. (Oppo at p.6: 10-13.) Plaintiff asserts that her email account did not require a password, meaning the email application opened automatically without prompting for entry of a password. (Nampeera Decl. ¶ 6.) However, there is some key context missing. Plaintiff was working remotely in Irvine (Southern California) while the main office was in San Ramon (Northern California). Plaintiff could only sign in into Defendant CMG's systems and server by a forward-facing VPN which does require a password. In other words, Plaintiff had to sign into a secured VPN to open her email and work from home, and Plaintiff has yet to describe circumstances of how other employees could have access to her email if she had to securely sign into her VPN and she worked from home approximately 500 miles from Defendant CMG's main office.

On balance, the supplemental briefing has not swayed the Court to change its initial ruling.

For the reasons described, Defendant CMG Mortgage, Inc.'s Motion to Compel Arbitration is **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

Procedural Background

On May 28, 2025, Plaintiff filed the Complaint alleging thirteen causes of action based on discrimination, harassment, wrongful termination, and retaliation. (See Naran Decl., at ¶ 3.) This case is still in its infancy. No deadlines have passed, no court proceedings have occurred, and the instant motion constitutes Defendant's first substantive filing. The parties have not engaged in discovery or taken any other steps that could suggest an intent to waive Defendant's right to arbitrate the current dispute.

Factual Background

CMG is a mortgage lending and financing company, and Plaintiff Jacqueline Nampeera worked for CMG as an hourly, non-exempt Compliance Specialist from on or around December 2020 through July 2023, working remotely from Irvine, California, and reporting to San Ramon, California. (Harbourne Decl., at ¶ 4.) As a term and condition of Plaintiff's employment, upon hire in 2020, Nampeera signed a standalone arbitration agreement with CMG via her personal email address. (Id., at ¶¶ 4-5, 8-10.) CMG routinely renews and updates its arbitration agreements and asks its employees to sign the renewed/updated agreements. (Id., at ¶ 5.) Most recently, as applied to Plaintiff, CMG renewed its

arbitration agreement in April 2021, and CMG asked Nampeera (and other employees Company-wide) to execute that agreement by no later than April 26, 2021. (Id., at ¶¶ 7, 11.) Nampeera executed the 2021 agreement the very next day after receiving it, on April 2, 2021, via DocuSign. (Id., at ¶ 12.) Both the 2020 and 2021 Agreements state:

Employee and CMG each agree that any dispute, claim, or controversy arising out of relating to Employee's employment with CMG, including but not limited to, any claim by the Employee for wrongful termination or employment discrimination ,,, shall be submitted to binding arbitration before a sole, neutral arbitrator selected by the parties.

(Harbourne Decl., at ¶¶ 9, 12, Exhibits A, D at ¶ 3 [**emphasis added**].)

Legal Standard for Motions to Compel Arbitration

A motion to compel arbitration “is in essence a suit in equity to compel specific performance of a contract.” (*Cal. Teachers Ass’n v. Governing Bd.* (1984) 161 Cal.App.3d 393, 399, citation omitted.) “A party who files a motion to compel arbitration ‘bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense.’” (*Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580 quoting *Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.) Whether or not the arbitration clause is governed by federal law, the threshold issue of whether a valid and enforceable agreement to arbitrate exists is determined under California law and procedures. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413 (“*Rosenthal*”).)

If the existence of the arbitration agreement is challenged, “the burdens of production shift in a three-step process.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) If the moving party meets its burden of proving the existence of a written agreement to arbitrate the dispute but the opposing party disputes the existence of a valid agreement, “then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (Id.) The opposing party meets its burden in several ways, that may include “testify[ing] under oath or declar[ing] under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement.” (Id.) “If the opposing party meets its burden, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties. (Id.) The burden of proving the agreement by a preponderance of the evidence remains with the moving party.” (Id.)

Throughout this process, “[t]he trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination.” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 842.) Notwithstanding the burden-shifting that may occur to produce evidence, “[t]he burden of persuasion is always on the moving party to prove the existence of an arbitration agreement by a preponderance of the evidence.” (*Gamboa*, 72 Cal.App.5th, at 164-165.)\

Analysis

EFAA

Section 401 of the Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act (“EFAA”) defines a sexual harassment dispute as “a dispute relating to conduct that is alleged to constitute sexual harassment under applicable Federal, Tribal, or State law.” (9 U.S.C. § 401(a)(4).) Fair Employment and Housing Act (“FEHA”) under California Government Code sections 12940, et seq. recognizes two types of sexual harassment claims: quid pro quo harassment, which is not at issue here; and hostile work environment harassment, i.e., “the creation of a work environment that is hostile or abusive on the basis of sex.” *Miller v. Department of Corrections*, 36 Cal.4th 446, 461 (2005). Because Plaintiff has alleged hostile work environment harassment based on gender, the entire action is exempt from arbitration, including claims not related to the alleged sexual harassment. (See 9 U.S.C. §§ 401-402; *Doe v. Second Street Corp.* (2024) 105 Cal.App.5th 552, 577 (the EFAA exempt the entire case from arbitration).)

Plaintiff argues that her fourth through sixth claims are for gender-based discrimination and harassment in violation of FEHA and thus exempt from arbitration under the EFAA. (Complaint, at ¶¶ 67-90; See also 9 U.S.C. §§ 401-402.)

Defendant argues that Plaintiff’s gender-based claims are a sham because it is facially evident from the Complaint that nearly every factual allegation concerns race and that the Complaint is void of any facts that Plaintiff had any action taken against her due to her gender. (Reply at p. 5: 21-28.) This Court agrees.

The Complaint does not contain the words woman, lady, body, or sex. The word female shows up five times to describe the Plaintiff, the other actors in the office, and protected classes. The word gender is used five times in Plaintiff’s factual allegations section of her Complaint and every single time it appears it is in the context of canned response that actions were taken against her based on “her race, gender, and/or age.” Nearly every factual allegation concerns race, including race-based targeting (see Complaint at ¶ 12), disproportionate termination of African American employees (*Id.*, at ¶¶ 21-25), race-based hostility from coworkers and supervisors (*Id.*, at ¶¶ 20, 29), mocking Plaintiff’s African heritage (*Id.*, at ¶ 20), and increased scrutiny allegedly tied to race (*Id.*, at ¶ 38).

Plaintiff “must allege” supporting detail that leads the Plaintiff to believe her allegations are true. (*Brown v. USA Taekwondo* (2019) 40 Cal.App.5th 1077, 1106, [citing *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 (quotations omitted)].) Further, harassment claims require specific factual allegations showing conduct directed at the plaintiff because of the protected characteristic. (*Lyle v. Warner Brothers Television Productions* (2006) 38 Cal.4th 264, 282 [factual allegations that use certain terminology “is not so sex-specific and derogatory that its mere use necessarily constitutes harassment because of sex.”] (citations omitted).)

Since Plaintiff’s Complaint contains no factual allegations that anyone said or did anything to Plaintiff because of her gender, Plaintiff’s claims are not subject to the EFAA exemption to arbitration.

Defendant’s Initial Burden

For arbitration to be compelled, the Court need only determine that (1) a valid agreement to arbitrate exists; and (2) the agreement to arbitrate encompasses the dispute at issue. (*Howsam v. Dean Witter*

Reynolds (2002) 537 U.S. 79, 84.)

Here, Defendant CMG provides copies of both the 2020 and 2021 Arbitration Agreements. Plaintiff does not dispute that this is a copy of the Contract or the Arbitration Agreement. (See Harbourne Decl., Exs. A and D.) Defendant asserts that the scope of the Arbitration Agreements was, “any dispute, claim, or controversy arising out of relating to Employee’s employment with CMG, including but not limited to, any claim by the Employee for wrongful termination or employment discrimination” between Defendant CMG and each employee. (Harbourne Decl., at ¶¶ 9, 12, Exhibits A, D at ¶ 3.) Plaintiff does not dispute the scope of the Arbitration Agreement.

Defendant CMG has met its initial burden to establish the existence of the Arbitration Agreement. Accordingly, the burden now shifts to Plaintiff to present facts showing why it should not be enforced. Here, Plaintiff argues that she did not sign either of the two Arbitration Agreements and that the Arbitration Agreements are unconscionable.

Plaintiff’s Electronic Signature

A party opposing arbitration by challenging the authenticity of his or her signature “need not *prove* that his or her purported signature is not authentic but must submit sufficient evidence to create a factual dispute and shift the burden back to the arbitration proponent.” (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

Plaintiff denies signing any Arbitration Agreement and contends that there is no evidence confirming that the DocuSign signatures on the Arbitration Agreements were placed there by Plaintiff under penalty of perjury in her declaration. (Nampeera Decl. at ¶ 13; Oppo at p. 7: 14-25.) Thus, Plaintiff shifted the burden back to Defendant CMG to authenticate Plaintiff’s electronic signature.

2020 Arbitration Agreement

A proponent seeking to authenticate an electronic signature must show the electronic signature “‘was the act of the person,’” which could be shown “‘in any manner, including a showing of the efficacy of any security procedure applied to determine the person to which the electronic record or electronic signature was attributable.’” (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 843, italics omitted; see Civ. Code, § 1633.9, subd. (a).) For example, a party may present evidence that the signatory was required to use a unique, private login and password to affix the electronic signature, along with evidence detailing the procedures the person had to follow to electronically sign the document and the accompanying security precautions. (*Garcia v. Stoneledge Furniture LLC* (2024) 102 Cal.App.5th 41, 53; citing *Espejo v. Southern California Permanente Medical Group* (2016) 246 Cal.App.4th 1047, 1062.)

Here, Defendant’s VP of HR, Stephanie Persi explains that Plaintiff’s signed offer letter which was signed on the same day as the 2020 Arbitration Agreement bore the same Envelope ID number. The Court notes that although Plaintiff denies receiving any arbitration agreement, she does acknowledge that she received her offer letter at her personal email address. (Nampeera Decl. ¶ 3.)

Defendant’s Chief of Staff Melissa Harbourne’s declaration explains that the 2020 Arbitration Agreement was sent and signed via DocuSign from her personal email address. (Harbourne Decl., at ¶ 11.) Ms. Nampeera’s 2020 Certificate of Completion reflects that her IP address at the time of her

signing (98.164.217.30) was a mobile device in Rancho Santa Margarita, CA, which is close to where she lived in Irvine. (Harbourne Decl., at ¶ 19.)

The Court reasons that since the Docusign confirmation was from Plaintiff's personal email address with an IP address close to her home in Irvine Defendant has proven by the preponderance of the evidence that Plaintiff was the person who caused the 2020 Arbitration Agreement to be e-signed.

2021 Agreement

Plaintiff argues that she did not sign the 2021 Arbitration based on her company email account not requiring a password to be opened and that during the time the Defendant alleges that is very unlikely she signed it, given that at the time it was signed at 1:07 pm, she would have been fully engaged in responding to emails in the compliance inbox. (Nampeera Decl., at ¶ 12.)

Ms. Harbourne, in her declaration, explains that if an employee was connected to CMG's system via the VPN at the time they signed a DocuSign document, CMG's company IP address associated with that VPN would be reflected on the employee's DocuSign Certificate of Completion as the IP address where the document was signed. Ms. Nampeera's 2021 Certificate of Completion reflects that she was connected to CMG's system via VPN at the time she signed her 2021 agreement. (Harbourne Decl., at ¶ 19.) The Court finds that Defendant has proven by the preponderance of the evidence that Plaintiff was the person who caused the 2021 Arbitration Agreement to be e-signed.

Unconscionability

The "unconscionability doctrine 'has both a procedural and a substantive element.'" (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125.) "The procedural element addresses the circumstances of contract negotiation and formation, focusing on oppression or surprise due to unequal bargaining power. Substantive unconscionability pertains to the fairness of an agreement's actual terms and to assessments of whether they are overly harsh or one-sided.'" (*Ibid.* quoting *Pinnacle, supra*, 55 Cal.4th at 246.)

"Both procedural and substantive unconscionability must be shown for the defense to be established, but 'they need not be present in the same degree.'" (*OTO, L.L.C.* 8 Cal.5th at 125.) "Instead, they are evaluated on a 'sliding scale.'" (*Ibid.*) "[T]he more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to 'conclude that the term is unenforceable.'" (*Ibid.*) "Conversely, the more deceptive or coercive the bargaining tactics employed, the less substantive unfairness is required." (*Ibid.*)

"The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement." (*Ibid.* quoting *Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 912.)

Procedural Unconscionability

Procedural unconscionability involves the components of "oppression" and "surprise." (*OTO, supra*, 8 Cal.5th at 126.) "Oppression arises from an inequality of bargaining power that results in no real negotiation and an absence of meaningful choice." (*Flores v. Transamerica HomeFirst, Inc.* (2001) 93 Cal.App.4th 846, 853.) Surprise, for purposes of procedural unconscionability, "involves the extent to

which the supposedly agreed-upon terms are hidden in a prolix printed form drafted by the party seeking to enforce them.” (*Ibid.*)

Minimal Oppression

A procedural unconscionability analysis ‘begins with an inquiry into whether the contract is one of adhesion.’” (*OTO, L.L.C.*, supra, 8 Cal.5th at 126 quoting *Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) “An adhesive contract is standardized, generally on a preprinted form, and offered by the party with superior bargaining power ‘on a take-it-or-leave-it basis.’” (*Ibid.* quoting *Baltazar v. Forever 21, Inc.* 2016) 62 Cal.4th 1237, 1245.)

Plaintiff argues that the Arbitration Agreement is procedurally unconscionable under the ‘oppression’ analysis because The Agreements were pre-printed, standardized forms, and the 2021 Arbitration Agreement was allegedly emailed to Plaintiff with instructions “to review and sign ... as a condition of your ongoing employment with CMG.” (Oppo at p. 10: 21-23.)

Thus, the Agreement suffers from a baseline amount of procedural unconscionability via oppression.

Lack of Support for Surprise

Arbitration Agreement Buried Among Multiple Documents

Plaintiff argues surprise because Defendant’s Arbitration Agreement was buried in Defendant CMG’s voluminous handbook hidden 59 pages of Docusign documents. (Oppo at p. 11: 2-4.) As to the 2021 Arbitration Agreement, neither the “Subject” line nor the body text of Ms. Harbourne’s April 1, 2021, email calls attention to the Arbitration Agreement, which was allegedly one of many documents to be reviewed and signed as a condition of Plaintiff’s ongoing employment. (Harbourne Decl., ¶11, Ex. C.)

The Court respectfully disagrees. *Kinney* describes a Handbook contained in a large three ring binder with an Arbitration Agreement with extensive complicated language in which the plaintiff was pressured to sign that same day. (*Kinney v. United Healthcare Servs.* (1999) 70 Cal.App.4th 1322, 1330.) The Arbitration Agreement did not mention specific details of the policy that unfairly one-sided to the company such as the company was not required to submit claims to arbitration, the company could modify the policy at any time without notice, and the fact the policy significantly limited the plaintiff’s procedural and substantive rights. (*Id.*)

This is not the case with the instant Arbitration Agreement. The operative Arbitration Agreement is approximately three pages long with titled provisions. The size and font type are not particularly hard to read. The document does not seem to have overly complicated legal citations or jargon. There are no particularly long paragraphs or sentences.

Scope of the Agreement Materially Changed Without Notice to the

Employee

Plaintiff further argues surprise since Defendant arbitration included a moving target since the agreements excluded certain claims from arbitration but then provides, “Nothing in this Agreement shall be interpreted to exclude claims from arbitration that, due to a change in the law, are subsequently permitted to be arbitrated pursuant to California or federal law.” (Harbourne Decl., ¶19,

Ex. A, at ¶6; Id., at ¶12, Ex. D, at ¶6.) Plaintiff complains that after Plaintiff allegedly agreed to arbitration, the law changed, and portions of PAGA claims may now be sent to arbitration.

This argument does not hold water because Plaintiff's Complaint does not include any PAGA claims. (See Complaint generally.)

While it may be true that there is some procedural unconscionability present in a situation where an Arbitration Provision is offered on a 'take-it-or-leave-it basis,' that alone does not mean an arbitration provision is unconscionable. As California courts have recognized, in the context of adhesion contracts "the inclusion of an arbitration provision is not per se unconscionable, particularly in a commercial transaction....'" (*Lagatree v. Luce, Forward, Hamilton & Scripps* (1999) 74 Cal.App.4th 1105, 1126 quoting *Macaulay v. Norlander* (1992) 12 Cal.App.4th 1, 6.) Even taken together with the contract's adhesive nature, these two features yield a low level of procedural unconscionability. (*Peng v. First Republic Bank* (2013) 219 Cal.App.4th 1462, 1472.)

When there is some degree of procedural unconscionability associated with the Arbitration Agreement, the Court is required to more closely scrutinize the substantive provisions of the agreement "'to ensure they are not manifestly unfair or one-sided.' [Citations omitted.]" (*Sanchez v. Valencia Holding Co., LLC* (2015) 61 Cal.4th 899, 915 ("*Sanchez*") [quoting *Gentry v. Superior Court* (2007) 42 Cal.4th 443, 469].)

Substantive Unconscionability

Substantive unconscionability may be found where the substantive provisions of the agreement are so overly harsh or unreasonably favorable to the more powerful party that they undermine its neutrality. (*Sanchez, supra*, 61 Cal.4th at 910-11, 913; *Armendariz, supra*, 24 Cal.4th at 117.) Substantive unconscionability focuses on the substantive fairness of the terms and whether the agreement is "unfairly one-sided." (*Little v. Auto Stiegler, Inc.* (2003) 29 Cal.4th 1064, 1071; *Baltazar v. Forever 21, Inc., supra*, 62 Cal.4th at 1248.) "The ultimate issue in every case is whether the terms of the contract are sufficiently unfair, in view of all relevant circumstances, that a court should withhold enforcement." (*Sanchez, supra*, 61 Cal.4th at 911-12.)

"A contract term is not substantively unconscionable when it merely gives one side a greater benefit; rather, the term must be 'so one-sided as to "shock the conscience."' [Citation omitted.]" (*Pinnacle, supra*, 55 Cal.4th at 246 [quoting *24 Hour Fitness, Inc. v. Superior Court* (1998) 66 Cal.App.4th 1199, 1213].)

Arbitration Venue and Demand Process

Plaintiff posits that both the arbitration agreements are substantively unconscionable since they require arbitration to occur "at the JAMS office located closest to CMG's principal place of business in Contra Costa County, California, unless the Parties mutually agree to an alternate location." (Harbourne Decl., ¶9, Ex. A, at ¶13; Id., at ¶12, Ex. D, at ¶13.) Plaintiff relies on *Magno* for their position.

In *Magno*, the California Court of Appeals for the Fourth District agreed with the trial court's finding of, "substantive unconscionability based on the arbitration provision's forum selection clause. The arbitration provision required young college-aged students to travel from San Diego, California to Marion County, Indiana to arbitrate their claims against a company that solicited their business in

California. The court determined requiring plaintiffs to travel to Indiana, or even to arrange to appear through video, would work a severe hardship on plaintiffs and unfairly benefit TCN by effectively preventing plaintiffs from asserting their claims.” (*Magno v. The College Network, Inc.* (2016) 1 Cal.App.5th 277, 288.) Unconscionable provisions include those “that seek to negate the reasonable expectations of the non-drafting party.” (*Sanchez v. Valencia Holding Co.* (2015) 61 Cal.4th 899, 911.) There is nothing in the record to suggest plaintiffs reasonably could have expected at the time of contracting that they would be required to resolve any disputes in Indiana. (*Magno v. The College Network, Inc.* (2016) 1 Cal.App.5th 277, 288.)

Here, the subject provision requires a remote working adult who works in Irvine, California to arbitrate her claims at the JAMS office closest to CMG’s principal place of business in Contra Costa County. The record here suggests that Plaintiff could have reasonably expected at the time of contracting to be required to resolve any disputes close to the company’s headquarters ,within the state of California, as a remote employee.

These facts are distinguishable from *Magno* because the subject provision compels an adult remote worker to arbitrate their claims near the company’s headquarters in Northern California while remotely working in Southern California which is markedly different from making young college students from San Diego arbitrate their claims in Indiana. As such, the Court does not find this provision substantively unconscionable.

Arbitration of Sexual Harassment Claims

Plaintiff points out that Defendant concedes, “all of Plaintiff’s fourteen causes of action are expressly subject to the [arbitration] agreement,” including Plaintiff’s causes of action for harassment based on gender pursuant to Cal. Gov’t Code §§ 12940, et seq. (Oppo at p. 13: 7-16.) Arbitration agreements purporting to require arbitration of sexual harassment claims are illegal and unenforceable. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 100-101 (vacated on other grounds) (“It is indisputable that an employment contract that required employees to waive their rights under the FEHA to redress sexual harassment or discrimination would be contrary to public policy and unlawful.”)

However, as discussed above, this argument does not apply in this case since Plaintiff’s Complaint facially only contains factual allegations of racial discrimination and harassment and only threadbare conclusory allegations of racial, gender and/or age discrimination or harassment. (See Complaint generally.) The Court does not find this provision substantively unconscionable.

Class Action Waiver

Under California law, class arbitration waivers are unenforceable if they “pose significant obstacles to the vindication of employees’ statutory rights,” including the right to enforce labor laws protecting overtime. (*Garrido v. Air Liquide Indus. U.S. LP* (2015) 241 Cal. App. 4th 833, 844.) Under *Gentry v. Superior Court*, a court must consider four factors in determining whether a class arbitration waiver is unenforceable: “the modest size of the potential individual recovery, the potential for retaliation against members of the class, the fact that absent members of the class may be ill informed about their rights, and other real-world obstacles to the vindication of class members’ right to overtime pay through individual arbitration.” (*Id.* at p. 463.) If the court then finds that class waiver “will likely lead

to a less comprehensive enforcement of overtime laws” and that class proceedings would be “a significantly more effective practical means of vindicating the rights of the affected employees,” it must invalidate the waiver. (*Id.*)

Here, although Plaintiff does concede the general enforceability of class action waivers, Plaintiff argues that because the provision waives class action and representative claims is not mutual, does increase the level of substantive unconscionability. (Oppo p. 13: 17-27.) Plaintiff does not address the four factors in *Gentry* to determine the enforceability of class arbitration waivers. The Court does not find this provision substantively unconscionable.

On balance, Plaintiff has failed to meet his burden to show that the Mutual Agreement to Arbitrate Claims should not be enforced due to unconscionability. Thus, Defendant’s motion to compel arbitration shall be granted.

Stay

Under the FAA, courts must stay an action where “the issue involved in such suit or proceeding is referable to arbitration under an arbitration “agreement.” (9 U.S.C § 3.) It is not clear, however, that this provision applies to proceedings in state court. (*Volt Information Sciences, Inc. v. Board of Trustees of Leland Stanford Junior University* (1989) 489 U.S. 468, 477, fn. 6 [noting the United States Supreme Court has not held this provision applies to state court proceedings]; *Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 410 [holding “section 4 of the USAA does not apply in California court” but not deciding whether section 3 applies].)

Under the CAA, courts “may order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding.” (CCP § 1281.2.) In other circumstances, when a court “has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State,” the court “shall ... stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate.” (Code of Civil Procedure § 1281.4.)

Independent of the CAA and FAA, courts have inherent authority to stay proceedings. (*Landis v. North American Co.* (1936) 299 U.S. 248, 254 [“the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants”]; *Nederlandse Erts-Tankersmaatschappij, N.V. v. Isbrandtsen Co.* (2nd Cir. 1964) 339 F.2d 440, 441 [no authority under 9 U.S.C. § 3 to stay action, but stay permitted under district court’s inherent power to control its docket]; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489 [“Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency”].) Even assuming the CAA and FAA neither require nor authorize the court to stay the current claims, the Court would exercise its inherent authority to issue a stay.

Conclusion

Based on the analysis above, Defendant CMG’s Motion to Compel Arbitration of claims is **granted**. The Parties are ordered to submit this matter to arbitration in accordance with the terms of the 2021 Arbitration Agreement. The Court orders this matter to be **stayed in full**, pending conclusion of the arbitration.

8. 9:00 AM CASE NUMBER: MSC19-02596

CASE NAME: DEBRA WALKER VS. TROY MARTINEZ

*HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT AND FOR AWARD OF ATTORNEY'S FEES AND SANCTIONS

FILED BY: WALKER, DEBRA

TENTATIVE RULING:

The motion to enforce settlement agreement pursuant to Code of Civil Procedure section 664.6 is **denied**.

Plaintiff Debra Walker filed this suit against defendants, Troy Martinez and Normandie & Clauson, LLC, on December 11, 2019. Parties allegedly reached a settlement in June of 2024 with Judge Melissa O'Connell, over the course of two settlement conference appearances. The court minutes from the two June dates show nothing about the terms to which parties allegedly agreed. Plaintiff's attorney then reduced the agreement to a writing, which plaintiff signed in September of 2024. Defendants delayed in returning an executed copy. When defendants finally returned the agreement, it was not an identical copy, but rather (according to the characterization in the opposition) a "counteroffer," containing changes. Defendants requested that *plaintiff* accept the changes by initialing and signing a copy of the "counteroffer."

Plaintiff refused to accept the changes applied by defendants. Instead, she sent a new copy with different terms and noticed a site inspection and deposition of defendant Martinez. On March 5, 2025, defendants sent another "settlement offer" to plaintiff, which she did not sign. Notably, by May of 2025, there was no single document bearing both sides' signatures, and neither plaintiff nor defendants were represented by the same counsel as at the June 2024 settlement conference. Plaintiff's new counsel, Perry Popovich, told defendants' new counsel, Rachel Doughty, that parties did not agree about the "payment form" and that plaintiff would be filing an amended complaint.

On August 26, 2025, a CMC was held and defendants stated an intention to file a motion to dismiss based on the five year statute. Plaintiff then filed this motion on November 24, 2025, arguing the parties reached agreement to a settlement in June of 2024, and that any changes proposed by defendants were not material. Defendants oppose the motion, arguing that the parties never agreed to the material terms, but also that plaintiff's own conduct indicated she did not believe a settlement had been reached. Defendants provide evidence that plaintiff took actions inconsistent with a settlement when she, among other conduct, noticed discovery and announced an intention to amend the complaint. Plaintiff has not submitted a reply brief, but instead her attorney provides a declaration relating to the transfer of plaintiff's case from her previous counsel. This evidence, while improperly submitted on reply (see *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537–1538), does not change the outcome here.

Pursuant to Code of Civil Procedure section 664.6(a):

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If requested by the parties, the court may retain jurisdiction over the

parties to enforce the settlement until performance in full of the terms of the settlement.

California courts have interpreted section 664.6 as creating “a summary, expedited procedure to enforce settlement agreements when certain requirements that decrease the likelihood of misunderstandings are met.” (*Elyaoudayan v. Hoffman* (2003) 104 Cal.App.4th 1421, 1429.). A trial court hearing a section 664.6 motion may receive evidence, determine disputed facts, and enter the terms of a settlement agreement as a judgment. (*Bowers v. Raymond J. Lucia Companies, Inc.* (2012) 206 Cal.App.4th 724, 732, quoting *Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 809.) “The trial court may not create the material terms of a settlement, as opposed to deciding what terms the parties themselves have previously agreed upon.” (*Ibid.*) “Thus, a trial court cannot enforce a settlement under section 664.6 unless the trial court finds the parties expressly consented ... to the material terms of the settlement.” (*Ibid.*)

Here, because there is no writing executed by both parties, the Court cannot enter judgment on the same. The agreement was reduced to *two* separate writings, one of which plaintiff accepted, the other which defendants accepted. It is not possible to conclude there was a meeting of the minds given these circumstances. While the Court might have accepted an argument that the terms supplied by defendants were not material at one point in time, plaintiff’s subsequent conduct, such as refusing to accept the new terms, suggests they *were* material. In addition to simply refusing to sign, plaintiff took actions requiring defendants to further incur attorneys’ fees, such as signaling an intent to amend the complaint, and noticing discovery.

As a result, there is not a “writing signed by the parties outside of the presence of the court” within the meaning of Code of Civil Procedure section 664.6(a), such that this motion could be granted. Accordingly, the request for sanctions is also denied.

9. 9:00 AM CASE NUMBER: MSC21-02349

CASE NAME: TAYLOR VS. AMAZON

***HEARING ON MOTION IN RE: RECONSIDERATION OF THE COURT'S ORDER ON DEFENDANT DAMIEN SEAN LAMONT ROSS' MOTION FOR SUMMARY JUDGMENT**

FILED BY: AMAZON.COM SERVICES LLC

TENTATIVE RULING:

Before the Court is Defendant Amazon.com Services LLC’s Motion for Reconsideration of the Court’s Order on Defendant/Cross-Complainant Damien Sean Lamont Ross’ Motion for Summary Judgment. The Court notes that Defendant Sokolovski filed a ‘joinder’ regarding Amazon’s motion for reconsideration.

Defendant/Cross-Complainant Ross’ Request for Judicial Notice is **granted**. (Cal. Evid. Code §452 (d).)

Factual and Procedural Background

On January 31, 2025, Ross filed his motion for summary judgment. On May 29, Amazon filed its opposition papers. Defendant Sokolovski filed an opposition on June 6. The motion was set for hearing on June 20, 2025.

The motion was directed toward six separate pleadings. As noted by the Court, each of these

pleadings represented a separate ‘action.’ In accordance with California Code of Civil Procedure section 437c, a “party may move for summary judgment in **an action** or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding, or “a party may move for summary adjudication as to one or more causes of action **within an action.**” (Code Civ. Proc., § 437c, subds. (a)(1) & (f)(1), emphasis added.)

Ross did not point to any authority which allowed him to file a single motion for summary judgment directed toward pleadings in six separate actions. The Court noted that it initially “was inclined to deny the MSJ without prejudice and require Mr. Ross to re-file separate MSJs directed toward each pleading to which he wanted a ruling.” As most of the parties did not oppose the MSJ, the court determined it would move forward with ruling on it.

While Defendant Amazon was not listed as a party against whom Mr. Ross was directing his motion, it filed an opposition to the MSJ.

The Court issued its tentative ruling on June 19. In the ruling, the Court noted:

“It is well established that the pleadings determine the scope of relevant issues on a summary judgment motion.” (*Nieto v. Blue Shield of California Life & Health Ins. Co.* (2010) 181 Cal.App.4th 60, 74.) From the pleadings cited by Mr. Ross, as well as the Court’s review of the pleadings, none of the complaints/cross-complaints involve Mr. Ross versus Amazon. There is no complaint filed by Amazon that names Mr. Ross as a defendant. Nor is there a Cross-Complaint filed by Amazon that identifies Mr. Ross as a Cross-Defendant.

As such, the Court determined that since “there is no pleading wherein Mr. Ross and Amazon have direct claims against each other, the Court will not consider Amazon’s opposition to the MSJ.”

Likewise, the Court determined that Defendant Sokolovski did “not have standing to oppose Mr. Ross’ MSJ with respect to claims asserted by the Taylor and Espinoza/Cerna plaintiffs” and as such, the Court determined it would not consider her opposition with respect to those actions.

The Court went on to determine that Ross met his initial burden to show that the ‘sudden emergency’ defense applied as to him. As none of the plaintiffs in the Taylor or Espinoza/Cerna matters filed oppositions, and the Court determined that Amazon and Sokolovski did not have standing to oppose the motion, the Court granted Ross’ MSJ as to the Taylor and Espinoza/Cerna complaints. As such, Ross’ MSJ was also granted as to the indemnity cross-complaints of the other parties – as there was a finding of no fault on the part of Mr. Ross.

No party contested the tentative ruling issued on June 19. Accordingly, it became the order of the Court. (Local Rule 3.43 (b).) Thereafter, on June 24, 2025, Ross filed and served a “Notice of Entry of Order on Defendant/Cross-Complainant’s Ross’ Motion for Summary Judgment.” On September 5, 2025, the Court entered the Order Granting Defendant Damine Sean Lamont Ross’ Motion for Summary Judgment. That Order notes that Ross was ordered to give notice of the ruling and did so on August 26, 2025. The POS attached to the Order confirms such notice was given on that date.

Standard of Review

Code of Civil Procedure section 1008(a) provides that a party affected by a prior court order may, “based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” (Cal. Code Civ. Proc. § 1008(a).) Such an application must be accompanied by an affidavit that states “what application was made before, when and to what judge, what order or decisions were made,

and what new or different facts, circumstances, or law are claimed to be shown.” (*Ibid.*)

However, a trial court has inherent power to reconsider its own interim rulings even in the absence of a change in law or new or different facts or circumstances. (*Pinela v. Neiman Marcus Group, Inc.* (2015) 238 Cal.App.4th 227, 237; *Brown, Winfield & Canzoneri, Inc. v. Superior Court* (2010) 47 Cal.4th 1233, 1248 (“*Brown*”).) “This authority derives from the judiciary’s fundamental, constitutionally mandated function to resolve specific controversies between the parties.” (*Brown*, 47 Cal.4th at 1248.)

Analysis

The basis of the Court’s earlier ruling was that there was no authority of which it was aware – or that any party presented – that indicated that a defendant that was not a party to the summary judgment motion at issue had standing to oppose such a motion. That tentative ruling was issued on June 19, 2025. It became the final order of the Court on September 5, 2025, when the Court entered the Order Granting Defendant Damien Sean Lamont Ross’ Motion for Summary Judgment.

In its motion for reconsideration, Amazon cites to *RND Contractors, Inc. v. Superior Court* (2025) 112 Cal.App.5th 697, which was published on June 30, 2025 – a date between the tentative ruling and the Court’s final order. That case addressed this specific issue, namely, as summarized by the Fourth Appellate District:

This case raises an issue of first impression under California law: when a defendant moves for summary judgment, but the plaintiff does not oppose the motion, may another party oppose the motion? We hold that the party may do so if that party and the defendant are adverse to one another. We further hold that there need not be cross-claims between those parties for them to be adverse to one another. (*Id.* at 699.)

As noted above, *RND Contractors, Inc.* was published after the Court’s tentative ruling but before the final order was entered. This case of first impression makes it clear that the Court should have considered Amazon’s and Sokolovski’s oppositions to Ross’ MSJ.

Whether under the statutory authority to reconsider under section 1008, or the Court’s own inherent authority, it is clear the Court should reconsider its earlier Order based on this new authority.

Accordingly, Amazon’s motion for reconsideration is **granted**. The Order granting Ross’ MSJ dated September 4, 2025, and filed September 5, 2025, is vacated.

Based on the above, the Court reconsiders and reevaluates Ross’ MSJ below with the benefit of reviewing both Amazon and Sokoloski’s oppositions.

Defendant/Cross-Complainant Damien Sean Lamont Ross’ Motion for Summary Judgment and Summary Adjudication.

Standard

Summary adjudication is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A moving defendant satisfies the initial burden of showing that a cause of action has no merit if he shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., §

437c (p)(2).)

“When a defendant moves for summary judgment on the ground there is an affirmative defense to the action, the burden shifts to the plaintiff to show there is one or more triable issues of material fact regarding the defense after the defendant meets the burden of establishing all the elements of the affirmative defense.” (*Jessen v. Mentor Corp.* (2008) 158 Cal.App.4th 1480, 1484.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. §437c(c).) “All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment.” (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 757 quoting *Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.)

Analysis

The Taylor and Espinoza/Cerna Complaints

As noted above, there are two separate Complaints which assert direct claims against Mr. Ross. Each of those Complaints allege wrongful death/negligence claims against Mr. Ross based his alleged negligence in stopping his vehicle in the #1 lane of the I-80. (Taylor Complaint ¶ 18; Espinoza/Cerna Complaint ¶ 15, 27.) Mr. Ross asserts the same defenses as to each Complaint. Neither of those parties submitted an opposition to Mr. Ross’ MSJ. As such, the Court will address those claims together.

In its earlier ruling, the Court treated Ross’ MSJ as unopposed since it did not consider the oppositions filed by Amazon and Sokolovski. As outlined above, based on the ruling in *RND Contractors, Inc. v. Superior Court* (2025) 112 Cal.App.5th 697, the Court will now re-review Ross’ MSJ in light of the arguments raised by those parties.

“Sudden Emergency” or “Imminent Peril” Defense

Ross argues that the ‘sudden emergency’ doctrine provides a complete defense to the claims against him. (The Court notes that this doctrine has several different names including the ‘imminent peril’ or ‘inevitable or unavoidable accident’ doctrine. For ease of reference, the Court will refer to it as the ‘sudden emergency’ doctrine.)

“Under the ‘sudden emergency’ or ‘imminent peril’ doctrine, ‘a person who, without negligence on his part, is suddenly and unexpectedly confronted with peril, arising from either the actual presence, or the appearance, of imminent danger to himself or to others, is not expected nor required to use the same judgment and prudence that is required of him in the exercise of ordinary care in calmer and more deliberate moments.’” (*Abdulkadhim v. Wu* (2020) 53 Cal.App.5th 298, 301-02 quoting *Leo v. Dunham* (1953) 41 Cal.2d 712, 714.) “A party will be denied the benefit of the doctrine ... where the party’s negligence causes or contributes to the creation of the perilous situation.” (*Ibid.* quoting *Pittman v. Boiven* (1967) 249 Cal.App.2d 207, 216.)

“The basis of the rule is ‘that the actor is left no time for thought, or is reasonably so disturbed or excited, that he cannot weigh alternative courses of action, and must make a speedy decision, based very largely upon impulse or guess. Under such conditions, the actor cannot reasonably be held to the same conduct as one who has had full opportunity to reflect, even though it later appears that he

made the wrong decision, which no reasonable man could possibly have made after due deliberation....” (*Schultz v. Mathias* (1970) 3 Cal.App.3d 904, 912 citations omitted.) “The test is whether the actor took one of the courses of action which a standard man in that emergency might have taken, and such a course is not negligent even though it led to an injury which might have been prevented by adopting an alternative course of action.” (*Id.* at 912-13.)

Is the Doctrine an Affirmative Defense?

Amazon first argues that the sudden emergency doctrine is an affirmative defense and as such Ross has an initial burden to show that undisputed facts support each element of the affirmative defense. (Opp. at 1:7-21.) Amazon cites *Shiver v. Laramie* (2018) 24 Cal.App.5th 395, 399 for the proposition that it is an affirmative defense. While *Shiver* does state that the “affirmative defense of the sudden emergency doctrine, also referred to as the imminent peril doctrine, is set forth in CACI No. 452,” it does not actually hold that it is an affirmative defense. That statement is, at best, mere dicta as to whether the doctrine is an affirmative defense, as the basis for that statement is not discussed or addressed in the opinion.

Curiously, Amazon takes the exact opposition position in its Reply in support of its own motion for summary adjudication/judgment – which is at issue on this day as well. There, Amazon argues that the sudden emergency doctrine is not an affirmative defense. It cites, among other things, the California Supreme Court opinion of *Polk v. City of Los Angeles* (1945) 26 Cal.2d 519, 543 where the Court stated the sudden emergency doctrine “**is not an affirmative defense** and the burden of proof rests upon plaintiff to prove negligence and proximate cause by a preponderance of the evidence.” (*Ibid.* emphasis added.)

The *Polk* Court cited the earlier case of *Jolley v. Clemens* (1938) 28 Cal.App.2d 55 with approval for its discussion and analysis of the issue. There, the Court found that “the claim that an accident was unavoidable is never legitimately an affirmative defense at all; that its whole purpose has already been served if the denials in the answer adequately respond to the charges made.” (*Id.* at 65.) With regards to arguments that an accident was unavoidable:

“... as a matter of pleading they are necessarily and sufficiently put in issue by a complaint on the one hand asserting an injury to have been proximately caused by something alleged to have been negligently done or omitted by the defendant and, on the other hand, an answer denying these averments.”

Amazon’s observation that the CACI instructions do not label the ‘sudden emergency’ doctrine as an affirmative defense supports this position. Based on the above, the Court finds that the ‘sudden emergency’ doctrine is not an affirmative defense.

Ross’ Position

Mr. Ross argues that he inspected his vehicle before driving it that day. (Ross Depo. at 76:12-21.) The tires on his vehicle were replaced in November 2019, less than a year before the incident. (Ross Decl. ¶ 3, Evid. Ex. 16.) Prior to the incident, Mr. Ross was driving in the number 1 lane of the westbound I-80. (Ross Depo. at 14:14-19.) After crossing the Carquinez Bridge, Mr. Ross was near the Hercules and Mill Valley exit when his left rear tire blew out. (*Id.* at 14:20-15:1.)

The tire blowout made it difficult to control his car. (*Id.* at 14:14-16:16.) While trying to control his car, he put his hazard lights on. (*Id.* at 16:19-24.) He then slowed and stopped in the middle of the #1 lane. (*Id.* at 17:4-21.) There was a “decent amount of cars” on the freeway that were “driving pretty fast.”

(*Id.* at 17:22-18:5.) Based on this, he determined that he could not safely get off the freeway to the right, and there was no shoulder to the left to move into. (*Id.* at 17:22-18:9.) At this point, Mr. Ross called 911 and then AAA to attempt and get assistance. (*Id.* at 18:10-19:11.)

He remained in his car, making those calls, until he saw a car slow and stop behind him. (*Id.* at 19:12-20:15.) At that point, he exited his vehicle to assess his tire. (*Ibid.*) The car that stopped behind him did not impact his vehicle. (*Id.* at 20:16-23.) Shortly thereafter, a second car came up and impacted the first car behind him. (*Id.* at 21:5-24:8.) At that point, Mr. Ross called 911 again to report the accident. (*Id.* at 25:8-10.) At some point shortly thereafter, a fourth car impacted the third car at speed, which resulted in a chain impact pushing car three into car two and car two into Mr. Ross' vehicle. (*Id.* at 32:22-33:16.)

Mr. Ross contends that his actions were reasonable under the circumstances and that he reasonable and the sort that a "standard man in that emergency might have taken." (*Schultz*, supra, 3 Cal.App.3d at 912-13.) Mr. Ross' testimony indicates that he had no reason to suspect that he might get a tire blowout prior to the time of the incident. The tires were relatively new and he visually inspected them before his trip that day. While he did consider trying to move to the right to get off the freeway, he determined that was not feasible given the amount and speed of traffic in those lanes.

Amazon and Sokolovski's Oppositions

Both parties argue that there are disputed issues of material fact as to each of the elements of the 'sudden emergency' doctrine which make it inappropriate for summary adjudication. To begin with, they both contend there is dispute evidence that the emergency was sudden and unexpected.

As noted by Amazon, while Mr. Ross asserts that he inspected his vehicle before the trip at issue, the inspection only included a visual inspection of the tires with respect to whether they looked adequately inflated. (Ross Depo. 76:12-77:9.) Mr. Ross did not use a pressure gauge to determine if the tires were actually properly inflated. (*Ibid.*) There is also no evidence indicating Mr. Ross' expertise or experience in begin able to determine the condition and/or durability of car tires. Additionally, the invoice showing new tires were purchased in November 2019 is inadmissible. (See objections.)

There is also a dispute as to whether Mr. Ross was aware of potential problems with his car/tires sufficiently prior to the blowout to have allowed him to exit the freeway before it occurred. There is conflicting – or at least ambiguous – testimony regarding Mr. Ross noticing a lean in his vehicle approximately 1.5-2 minutes prior to the blowout. (Ross Depo. 71:14-74:5.) Mr. Ross testified that his car "was driving abnormally [] on the sharp right turn as you get off the Carquinez Bridge." (*Id.* at 71:21-23.) Amazon and Sokolovski argue this was sufficient warning to Mr. Ross that something was amiss.

Amazon and Sokolovski also dispute the reasonableness of Mr. Ross' decision to stop in the #1 lane of a busy freeway. As noted above, Mr. Ross noticed a lean in his vehicle approximately a minute and a half prior to the blowout. This could have been sufficient time for Mr. Ross to make his way to the shoulder or exit the freeway. Even after the tire blew out, Mr. Ross regained control of his car but did not make any effort to pull the car over to the right or exit the freeway. (Ross Depo. 83:7-11.) After getting the flat, Mr. Ross started to lose control of his vehicle but then started to slow down and regained control. (*Id.* at 79:18-80:2; 81:3-82:2.) While Mr. Ross did regain control of the car, he was still of the opinion that it would not be safe to attempt to cross four lanes of traffic to attempt and exit the freeway. (*Id.* at 81:3-82:5; 85:16-86:16.)

Application of Doctrine is a Jury Question

As the California Supreme Court long ago held, ordinarily “whether a person has been suddenly confronted with imminent peril is a question of fact to be submitted to the jury.” (*Leo v. Dunham* (1953) 41 Cal.2d 712, 715.) Likewise, the California Supreme Court has held that when faced by an emergency “it is a question for the trier of fact to determine whether the person acted with reasonable care under all the circumstances.” (*Reynolds v. Filomeo* (1951) 38 Cal.2d 5, 14 citation omitted.)

Later cases have confirmed this procedure. (See e.g. *Warren v. Sullivan* (1961) 188 Cal.App.2d 150, 154 [“[O]rdinarily, whether a person has been suddenly confronted with imminent peril, or whether such peril was brought about through her own negligence, is a question of fact for the jury.”]; *Damele v. Mack Trucks* (1990) 219 Cal.App.3d 29, 37 [“Whether the conditions for application of the imminent peril doctrine exist is itself a question of fact to be submitted to the jury.”]; *Desrosiers v. Flight Int’l* (9th Cir. Ct. of Appeal 1998) 156 F.3d 952, 958 [same].) It is a “rare case” where the rule applies at a summary judgment motion. (*Shiver*, supra, 24 Cal.App.5th at 397.)

Here, we do not have the ‘rare case’ where the Court can determine as a matter of law that the ‘sudden emergency’ doctrine applies. It is properly a question of fact for the jury to decide if the tire blowout was ‘sudden and unexpected’ and whether Mr. Ross’ acted as a ‘reasonably careful person would have acted in a similar situation.’

Conclusion

Defendant/Cross-Complainant, Damien Sean Lamont Ross’ Motion for Summary Judgment is **denied**.

Evidentiary Objections

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

Amazon and Sokolovski’s Objections: (Both parties make the same objections, so they are addressed together.)

Objection 1: Overruled.

Objection 2: Sustained (Cal. Evid. Code §§ 1200, 1400-1401; *Box v. California Date Growers Assn.* (1976) 57 Cal.App.3d 266, 270 [“Indeed, it is well established that traffic accident reports are not admissible in evidence.”])

Objection 3: Sustained (Cal. Evid. Code §§1400-1401; 1200.)

10. 9:00 AM CASE NUMBER: MSC21-02349

CASE NAME: TAYLOR VS. AMAZON

HEARING IN RE: JOINDER FOR MOTION FOR RECONSIDERATION OF ORDER GRANTING DAMIEN SEAN LAMONT ROSS'S MOTION FOR SUMMARY JUDGMENT

FILED BY: SOKOLOVSKI, EVGENY

TENTATIVE RULING:

See Line 9.

11. 9:00 AM CASE NUMBER: MSC21-02349

CASE NAME: TAYLOR VS. AMAZON

HEARING ON SUMMARY MOTION

FILED BY:

TENTATIVE RULING:

Before the Court is Defendant Amazon.com Services, LLC and Amazon Logistics, Inc.'s Motion for Summary Judgment and Summary Adjudication ("MSJ").

Factual Background

This matter pertains to a multiple vehicle accident that occurred on the I-80 in Hercules, California on October 23, 2020. The incident included several separate events. The series of events occurred at approximately 8:25 p.m. on what was a clear, dark, dry evening.

Damien Ross was driving in the #1 lane when he experienced a tire blowout. He stopped in the #1 lane as he determined that it was unsafe to attempt and cross the four lanes of traffic to exit the freeway. (See line 9.) Shortly thereafter, Benjamin Taylor successfully stopped behind Ross without impacting his vehicle.

Next, Torres was unable to stop in time and struck Taylor's vehicle. Following this collision, Ordonia was unable to slow her vehicle and collided with Torres's vehicle. After this occurred, the parties exited their vehicles to assess the situation and exchange information. A couple of the vehicles had their hazard lights on at this time.

Approximately ten minutes after Mr. Ross' flat tire occurred, Mr. Yumul, who was working for Amazon at the time, approached the accident scene traveling at approximately 70 miles per hour, with his cruise control set. The parties at the scene noticed that Mr. Yumul did not appear to be slowing. As such, Mr. Ross got back in his car. At least one of the other parties – who were all standing in the #1 lane as there was not shoulder in that area – was waving their arms attempting to signal the approaching car to slow down.

Mr. Yumul attempted to stop but was unable to. Mr. Yumul's vehicle struck the individuals Torres and Taylor, ultimately crashing into Mr. Ross' vehicle.

Procedural Issues

Depositions as Exhibits

When a deposition is used as an exhibit, "the exhibit must contain **only** the relevant pages of the transcript." (Cal. R. Ct. 3.1116 (b) emphasis added.) In addition, the "relevant portion of any testimony in the deposition **must be marked** in a manner that calls attention to the testimony." (Cal. R. Ct. 3.1116 (c) emphasis added.) Normally, this is done by either highlighting or bracketing the lines being cited to in the Memorandum and/or Separate Statement.

The Court notes that it informed the Parties of this requirement in its tentative and final order on Mr. Ross' MSJ. Despite this reminder, Amazon still failed to mark any of the pages from the three depositions that it included in as exhibits. Amazon should be prepared to explain why it believes it is not required to abide by the Rules of Court – especially when such rule has already been highlighted

by the Court.

Combined Motion

Almost exactly like the previous MSJ filed by Mr. Ross, the Notice for Amazon's MSJ indicates that it intends to seek summary judgment (or in the alternative summary adjudication) as to numerous pleadings. Specifically it states that it seeks summary judgment as "to the operative complaints of plaintiffs, David S. Taylor, Helene S. Taylor (hereafter, Taylor Plaintiffs), and Salvador Cerna Espinoza, Ayleen Cerna, and Remeo Cerna (hereafter, Cerna Plaintiffs), [as well as] the operative cross-complaints of Sean Lamont Ross, Estate of Vernice Hernandez Torres, Trieana Ordonia, and Evgeny Sokolovski (hereafter, collectively, Cross-Complaints.)

As previously explained by the Court, "[a] party may move for summary judgment *in an action* or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding, or "a party may move for summary adjudication as to one or more causes of action *within an action*." (Code Civ. Proc., § 437c, subds. (a)(1) & (f)(1), emphasis added.) These references to "an action" in the summary judgment statute are singular references. The word "action" is defined as "an ordinary proceeding in a court of justice by which one party prosecutes another [...]" (Code Civ. Proc., § 22, emphasis added.)

"Where there are both a complaint and a cross-complaint there are actually two separate actions pending and the issues joined on the cross-complaint are completely severable from the issues under the original complaint and answer. [citations.]" (*Westamerica Bank v. MBG Industries, Inc.* (2007) 158 Cal.App.4th 109, 134 quoting *Security Pacific National Bank v. Adamo* (1983) 142 Cal.App.3d 492, 496.) "Where a cross-complaint is filed there are two simultaneous actions pending between the parties wherein each is at the same time both a plaintiff and a defendant." (*Ibid.* quoting *K.R.L Partnership v. Superior Court* (2004) 120 Cal.App.4th 490, 503.)

The Court previously noted that it was not aware of any authority which permits a party to challenge two separate complaints, as well as four separate cross-complaints (aka actions) via one motion. Mr. Ross did not provide any such authority when he filed his motion – and Amazon fails to cite any authority at this time authorizing such a procedure. While the Court in *RND Contractors, Inc. v. Superior Court* (2025) 112 Cal.App.5th 697 held that when a party files a motion for summary judgment any defendant that may be materially affected by that motion can file an opposition – even if not actually named – the Court did not address the issue of whether a party can file a single motion for summary judgment directed toward multiple actions.

Consistent with the Court's order with respect to Mr. Ross' improper MSJ, it was initially inclined to deny the MSJ without prejudice and require Amazon to re-file separate MSJs directed toward each pleading to which it wanted a ruling. However, given the impending trial date, and the failure of any party to object to Amazon's improper procedure, the Court will move forward with ruling on the motion.

This does not mean that Amazon can skirt its obligation to pay the required filing fee required for each motion. As Amazon should have paid a separate filing fee for each of its MSJs – one directed toward each pleading at issue – **Amazon is ordered to pay five additional MSJ filing fees.**

Standard

Summary adjudication is proper if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. (Code Civ. Proc. § 437c(c).) A moving defendant satisfies the initial burden of showing that a cause of action has no merit if he shows that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c (p)(2).)

“When a defendant moves for summary judgment on the ground there is an affirmative defense to the action, the burden shifts to the plaintiff to show there is one or more triable issues of material fact regarding the defense after the defendant meets the burden of establishing all the elements of the affirmative defense.” (*Jessen v. Mentor Corp.* (2008) 158 Cal.App.4th 1480, 1484.)

“In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. §437c(c).) “All doubts as to whether any material, triable issues of fact exist are to be resolved in favor of the party opposing summary judgment.” (*Cole v. Town of Los Gatos* (2012) 205 Cal.App.4th 749, 757 quoting *Barber v. Marina Sailing, Inc.* (1995) 36 Cal.App.4th 558, 562.)

“Sudden Emergency” or “Imminent Peril” Defense

“Under the ‘sudden emergency’ or ‘imminent peril’ doctrine, ‘a person who, without negligence on his part, is suddenly and unexpectedly confronted with peril, arising from either the actual presence, or the appearance, of imminent danger to himself or to others, is not expected nor required to use the same judgment and prudence that is required of him in the exercise of ordinary care in calmer and more deliberate moments.’” (*Abdulkadhim v. Wu* (2020) 53 Cal.App.5th 298, 301-02 quoting *Leo v. Dunham* (1953) 41 Cal.2d 712, 714.) “A party will be denied the benefit of the doctrine ... where the party’s negligence causes or contributes to the creation of the perilous situation.” (*Ibid.* quoting *Pittman v. Boiven* (1967) 249 Cal.App.2d 207, 216.)

“The basis of the rule is ‘that the actor is left no time for thought, or is reasonably so disturbed or excited, that he cannot weigh alternative courses of action, and must make a speedy decision, based very largely upon impulse or guess. Under such conditions, the actor cannot reasonably be held to the same conduct as one who has had full opportunity to reflect, even though it later appears that he made the wrong decision, which no reasonable man could possibly have made after due deliberation....’” (*Schultz v. Mathias* (1970) 3 Cal.App.3d 904, 912 citations omitted.) “The test is whether the actor took one of the courses of action which a standard man in that emergency might have taken, and such a course is not negligent even though it led to an injury which might have been prevented by adopting an alternative course of action.” (*Id.* at 912-13.)

Analysis

Initially, as to the arguments that the ‘sudden emergency doctrine’ is an affirmative defense which Amazon failed to plead, the Court determined that it is not an affirmative defense. (See line 9.)

It is a little unclear what Amazon contends is the ‘sudden emergency’ which Mr. Yumul was faced with. Amazon argues that the ‘sudden emergency’ which confronted Mr. Yumul was “stopped traffic and persons standing on a freeway in the dark at 8:25 a.m. shortly after previous vehicle collisions.”

(MSJ at 4: 7-8.)

As outlined above, the accidents at issue did not ‘suddenly’ occur before Mr. Yumul but instead spanned over a period of time. First, Mr. Ross experienced a blowout causing him to stop in the #1 lane. Mr. Taylor then stopped behind his vehicle. Shortly thereafter, Torres then collided with Taylor’s vehicle. Following this collision, Ordonia was unable to slow her vehicle and collided with Torres’s vehicle. It is unclear how long all this took. However, after this occurred, a number of the parties exited their vehicles to assess the situation and exchange information.

The time from when Mr. Ross experienced the blowout until Mr. Yumul appeared on the scene was approximately 10-15 minutes. (Ross Depo. 37:2-38:6.) There was sufficient time for all of the above activities to occur, as well as the parties to exit their vehicles to assess the situation. (*Ibid.*; see also Espinosa Depo. at 83:1-14.) In other words, the situation that Amazon claims was a ‘sudden emergency’ had been in existence for approximately ten minutes prior to Mr. Yumul being confronted with it.

The ‘sudden emergency doctrine’ is only potentially applicable if a person is “suddenly and unexpectedly confronted with peril...” (*Abdulkadhim v. Wu* (2020) 53 Cal.App.5th 298, 301-02.) “The doctrine of imminent peril is properly applied only in cases where an unexpected physical danger is presented **so suddenly** as to deprive the driver of his power of using reasonable judgment.” (*Pittman v. Boiven* (1967) 249 Cal.App.2d 207, 216 emphasis added.) “The doctrine is properly applied only in cases where an unexpected physical danger is **so suddenly presented** as to deprive the injured party of his power of using reasonable judgment.” (*Sadoian v. Modesto Refrigerating Co.* (1958) 157 Cal.App.2d 266, 274.) “In absence of any evidence disclosing a situation of sudden peril, the doctrine is not applicable...” (*Ibid.* quoting *Groat v. Walkup Drayage & Warehouse Co.* (1936) 14 Cal.App.2d 350, 353.)

For example, in *Shiver* Ms. Adams attempted to enter a freeway via the on-ramp. (*Shiver*, 24 Cal.App.5th at 397.) While doing so she was being tailgated by a black vehicle. (*Ibid.*) That black vehicle then moved around her, the driver made an obscene gesture, then pulled in front of Ms. Adams and suddenly stopped. (*Ibid.*) The sudden emergency ‘arose because the black car suddenly braked in front of Adams’s car,’ which “presented an unanticipated situation since vehicles merging onto a freeway normally increase their speed of travel with the flow of traffic instead of suddenly stopping.” (*Id.* at 401.)

As outlined above, the stopped vehicles and people in the #1 lane were there for at least 5-10 minutes prior to Mr. Yumul coming to that area. No vehicle suddenly stopped in front of him or suddenly swerved out of the way giving Mr. Yumul no time to react to the stopped vehicles on the freeway. This was a static situation by the time Mr. Yumul arrived on the scene.

Amazon compares this matter to that outlined in *Abdulkadhim v. Wu*, supra. There, Wu was driving between 60 and 70 miles per hour when he saw a car stopped in the lane he was in about 20 to 30 car lengths ahead. (*Id.* at 300.) As such, he changed lanes and passed the vehicle driving between 40 and 50 miles per hour. (*Ibid.*) Al-Kuraishi was following Mr. Wu and crashed into the stopped vehicle. (*Ibid.*) Wu argued that the ‘sudden emergency doctrine’ applied given the stopped vehicle on the freeway before him. The Court agreed.

Abdulkadhim is distinguishable for several reasons. There is no discussion regarding when the vehicle

stopped or the conditions of the road on the date at issue. Likewise, it is unclear what the speed limit was in the area and whether Mr. Wu was driving within the allowable speed. In addition, the conditions in the instant case were dissimilar. There were multiple vehicles stopped for an extended period of time, the cars had hazard lights flashing, and there were people on the side of the freeway waving their arms to bring attention to the situation. There are factual disputes regarding the conditions of the scene – unlike in Wu where the Court found that the facts were not in dispute. (*Id.* at 302.)

To the extent that Amazon still claims that this static situation constitutes a ‘sudden emergency,’ the California Supreme Court long ago held that “whether a person has been suddenly confronted with imminent peril is a question of fact to be submitted to the jury.” (*Leo v. Dunham* (1953) 41 Cal.2d 712, 715.)

In addition to the above, the ‘sudden emergency doctrine’ is only applicable when there is no negligence on the part of the party asserting its application. (*Leo*, supra, 41 Cal.2d at 714.) The posted speed limit in the area of the accident is 65 miles per hour. (Hightower Depo. 31:7-15.) Amazon’s own undisputed fact indicates that Mr. Yumul was driving 70 miles per hour at the time of the incident. (UMF 6.) The parties dispute this and claim that he was driving slightly faster – approximately 73 miles per hour. (Responses to UMF 6.) Either way, it is undisputed that Mr. Yumul was travelling in excess of the posted speed.

Amazon argues that even if Mr. Yumul was driving over the posted speed limit he was still not violating the ‘basic speed law.’ Per Amazon, the “basic speed law is: ‘No person shall drive a vehicle upon a highway at a speed greater than is reasonable or prudent having due regard for weather, visibility, the traffic on, and the surface and width of, the highway, and in no event at a speed which endangers the safety of persons or property.’” (Veh. Code, § 22350.)” While this may be true, determining what would be ‘reasonable or prudent’ for the conditions at the time of the accident is a question of fact. While Mr. Yumul may have believed that he was driving at an appropriate speed, that does not make it so.

Whether Mr. Yumul’s speed at the time of the incident constitutes sufficiently negligent to deprive Mr. Yumul of the ‘sudden emergency doctrine’ is a question of fact for a jury to determine. (*Reynolds*, supra, 38 Cal.2d at 14; *Warren*, supra, 188 Cal.App.2d at 154 “[O]rdinarily, whether a person has been suddenly confronted with imminent peril, or whether such peril was brought about through her own negligence, is a question of fact for the jury.” citation omitted.)

In Reply, Amazon argues that the “Taylor Plaintiffs do not address the Amazon Defendants’ argument that Helen Taylor is not a proper plaintiff,” and as such the Court should dismiss Helene Taylor as a plaintiff. Amazon does not cite any portion of its moving papers to indicate where this argument was made. In reviewing Amazon’s moving paper, no such argument appears to have been made.

Notably, this theory was not presented in the Notice. “A basic tenant of motion practice is that the notice of motion must state the grounds for the order being sought [cites], and the court generally may consider only the grounds stated in the notice of motion.” (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277.)

Conclusion

Based on the above, Amazon's motion for summary judgment, or in the alternative, summary adjudication is **denied in full**.

Evidentiary Objections:

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

12. 9:00 AM CASE NUMBER: N25-1678

CASE NAME:

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Approved.

13. 9:00 AM CASE NUMBER: N25-1718

CASE NAME: CLAIM OF:ALAUNEY DAVISALAUNEY DAVIS

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

Approved.

Discovery Law & Motion

14. 9:01 AM CASE NUMBER: C23-01054

CASE NAME: SWEET ADELINE INC VS. TASTYWINGS INC

***HEARING ON MOTION FOR DISCOVERY COMPEL PLTF SWEET ADELINE, INC. TO PRODUCE DOCUMENTS IN RESPONSES TO DEFENDANT'S REQUEST FOR PRODUCTION OF DOCUMENTS**

FILED BY: MANSOUR, WALEED

TENTATIVE RULING:

The unopposed motion to compel request to produce documents nos. 2, 3, 8, 9, 10, 11, 12, 37, 38, 39, and 40 is granted. The court awards sanctions against Plaintiff in the amount of \$4942.50 payable within 21 days of the order being signed.

15. 9:01 AM CASE NUMBER: C23-00343

CASE NAME: JOHN SCOTT VS. GOLDEN RAIN FOUNDATION

***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION, SET FIVE**

FILED BY: SCOTT, JOHN

TENTATIVE RULING:

Motion withdrawn on 12/18/25.

Discovery Law & Motion
Add On

16. 9:01 AM CASE NUMBER: C24-02991
CASE NAME: ROSALYN NAVAL-ZAHNER VS. JOELLE SCIMIA
***HEARING ON MOTION FOR DISCOVERY COMPEL JOELLE SCINIA AMENDED RESPONSES TO FORM INTEROG, SET 1**
FILED BY:
TENTATIVE RULING:

The court relieves Defendant of waiver of objections pursuant to CCP section 473(b). The court finds the delay was due to mistake, inadvertence, and excusable neglect. The motion is denied.

17. 9:01 AM CASE NUMBER: C24-02991
CASE NAME: ROSALYN NAVAL-ZAHNER VS. JOELLE SCIMIA
***HEARING ON MOTION FOR DISCOVERY COMPEL JOELLE SCIMIA AMENDED RESPONSES TO PRODUCTION OF DOCUMENTS SET 1**
FILED BY:
TENTATIVE RULING:

The court relieves Defendant of waiver of objections pursuant to CCP section 473(b). The court finds the delay was due to mistake, inadvertence, and excusable neglect. The motion is denied.

18. 9:01 AM CASE NUMBER: C24-02991
CASE NAME: ROSALYN NAVAL-ZAHNER VS. JOELLE SCIMIA
***HEARING ON MOTION FOR DISCOVERY COMPEL JOELLE SCIMIAN AMENDED RESPONSES TO REQUEST FOR ADMISSIONS**
FILED BY:
TENTATIVE RULING:

The court relieves Defendant of waiver of objections pursuant to CCP section 473(b). The court finds the delay was due to mistake, inadvertence, and excusable neglect. The motion is denied.